

where a lessee has an option of purchasing and the option is exercised after the death of the lessor, in which case there is a retrospective conversion. On the other hand, it may be argued that a purchase by a trustee is not void but voidable only, and that the heir is clearly not bound to account for the rents while he was in possession, and that the Court takes an account of rent and interest *ab initio*, not for the purpose of increasing the trustee's personal estate, but for measuring the price which the *cestui que trust* must pay for recovering the estate: that the heir takes all the title which the intestate could give him, subject to an equity subsisting in another to wrest the estate from him upon certain terms, and that the monies repaid are in fact the estate, after satisfying the outstanding claims: that the cases decided upon contract have no application, as the monies are here repaid contrary to the contract: that a different doctrine would lead to great inconvenience in adjusting the accounts of rent and interest, and also from intermediate settlements or other dispositions by the heir; it would be very hard, for instance, that purchasers under a marriage settlement, with constructive notice, should, because they cannot have the whole benefit, be deprived of every benefit. The inclination of the author's opinion is in favour of the real representative, but the point remains to be decided.

Thirdly, As to the time within which the sale may be set aside.

1. **Cestui que trust must set aside the sale in reasonable time.** — If the *cestui que trust* desire to set aside the purchase, he must make his application to the Court in *reasonable time*, or he will not be entitled to relief (*b*). A long acquiescence under a sale to a trustee is treated as evidence that the relation between the trustee and *cestui que trust* had been previously abandoned, and that in all other respects the purchase was fairly conducted (*c*).

(*b*) *Campbell v. Walker*, 5 Ves. 680, 682, *per* Lord Alvanley; *Chalmer v. Bradley*, 1 J. & W. 59, *per* Sir T. Plumer; *Ex parte James*, 8 Ves. 351, *per* Lord Eldon; *Webb v. Rorke*, 2 Sch. & Lef. 672, *per* Lord Redes-

dale; *Randall v. Errington*, 10 Ves. 427, *per* Sir W. Grant. But see *Baker v. Peck*, 9 W. R. 186.

(*c*) *Parkes v. White*, 11 Ves. 226, *per* Lord Eldon; and see *Morse v. Royal*, 12 Ves. 374, 378.